# Harbir Singh vs State Govt. Of Nct Delhi on 17 May, 2023

## Author: Jasmeet Singh

## Bench: Jasmeet Singh

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*  IN THE HIGH COURT OF DELHI AT NEW DELHI
\+  BAIL APPLN. 1639/2023
HARBIR SINGH
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STATE GOVT. OF NCT DELHI
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CORAM:
HON'BLE MR. JUSTICE JASMEET SINGH
OR

% 17.05.2023 Exemption allowed, subject to all just exceptions. Application stands disposed of.

This is an application seeking bail in FIR No. 72/2013 dated 19.02.2013 u/s 420 IPC registered at PS Geeta Colony.

As per the FIR, it is stated that the complainant entered into an agreement to sell with one Gurbaksh Singh and paid Rs. 13 lakhs as earnest money. It is further stated that the balance amount of Rs. 1 crore 13 lakhs was to be paid at the time of execution of transfer documents.

Mr. Gurbaksh Singh has already expired.

However, in the meantime, the complainant got to know that Gurbaksh Singh was not the owner of the property and in addition, there was This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 24/09/2023 at 11:16:03 illegal and unauthorized construction in the premises. It is further stated that the property was to be demolished. Hence, the FIR.

Mr. Baweja, learned counsel for the applicant states that the applicant was neither the owner nor the beneficiary of the amount of Rs. 13 lakhs. He was only an attesting witness to the agreement to sell. The same is disputed by Mr. Gautam Pal, learned counsel for the complainant.

Mr. Pal further states that the applicant is a party to the fraud and has also received a cash amount of Rs. 10.5 lakhs.

I have heard learned counsel for the parties as well as learned APP for the State.

In the present case, at best, the case of the complainant is that he has been defrauded of Rs. 13 lakhs.

The learned counsel for the complainant even though states that Gurdev Singh i.e. predecessor in interest of late Gurbaksh Singh or Gurbaksh Singh are not the owners of the property, however they are unable to state as to who is the owner of the property or why Mr. Gurbaksh Singh is not the owner of the property In addition, the complainants have already filed suit for recovery and damages which is pending adjudication.

Even though criminal proceedings cannot be used as recovery proceedings but since there are averments that the complainant is working in Dubai, it would be in the interest of justice if Rs. 13 lakhs is secured.

The investigation against the applicant is complete and the police is in the process of filing supplementary chargesheet. There is no requirement of custodial interrogation. The applicant is not alleged to be the owner of the property in question and except the allegation of receiving Rs. 10.5 lakhs in This is a digitally signed order.

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In this view of the matter, I am inclined to allow the application and the applicant is directed to be released on bail subject to following terms and conditions:

> i. The applicant shall deposit a sum of Rs. 13 lakhs in the name of Registrar General, Delhi High Court which shall be kept in a fixed deposit account;
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> ii. The applicant shall furnish date of birth of his brother Gurdev Singh to the IO;
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> iii. The applicant shall furnish a personal bond and a surety bond in the sum of Rs. 1,00,000/-. The security bond will be by the wife of the applicant, to the satisfaction of the Trial court; iv. The applicant shall appear before the Court as and when the matter is taken up for hearing;
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> v. The applicant shall join investigation as and when called by the I.O concerned through VC (if in Dubai) but when required he should appear in person;

vi. The applicant shall provide his mobile number to the Investigating Officer (IO) concerned, which shall be kept in working condition at all times. The applicant shall not switch off, or change the same without prior intimation to the IO concerned, during the period of bail;

vii. The applicant shall share his live location through Google Pin location to the I.O. concerned;

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The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 24/09/2023 at 11:16:04 viii. In case the applicant changes his address, he will inform the IO concerned and this Court also;

ix. In case the applicant is travelling to Dubai for work, he shall give his Dubai number as well as residential address and working address in Dubai to the concerned IO;

x. The applicant shall not indulge in any criminal activity during the bail period;

xi. The applicant/agent/relative/family member of the applicant shall not communicate with, or come into contact with any of the prosecution witnesses, or any member of the complainant s family, or tamper with the evidence of the case.

The application stands disposed of in the aforesaid terms. Nothing herein is tantamount to the merits of the case. Dasti under the Signature of Court Master/Private Secretary.

JASMEET SINGH, J MAY 17, 2023/DM Click here to check corrigendum, if any This is a digitally signed order.

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